



FOOD TRAILER PURCHASE AGREEMENT

Custom Food Concession Trailer · Build & Delivery

This Food Trailer Purchase Agreement (this "**Agreement**") is made and entered into as of **June 26, 2026** (the "**Effective Date**"), by and between the following parties:

SELLER

Marcelo Ramos Schiaffino

An individual conducting business under the unregistered trade name "Nova Food Trailer."
Phone: +1 (645) 235-3186 · Email: marceloramosch@gmail.com

BUYER

Hani Nashar

An individual.
Email: haninashar15@icloud.com · Delivery market: Dallas, Texas

The Seller and the Buyer are each referred to herein as a "**Party**" and collectively as the "**Parties**."

RECITALS

WHEREAS, the Seller designs, configures, and arranges the manufacture of custom food concession trailers;

WHEREAS, the Buyer desires to purchase one (1) custom food trailer built to the specifications set forth in this Agreement, and the Seller desires to build, sell, and deliver such trailer to the Buyer, subject to the terms and conditions herein;

NOW, THEREFORE, in consideration of the mutual covenants, promises, and obligations set forth below, and for other good and valuable consideration, the receipt and sufficiency of which are hereby acknowledged, the Parties agree as follows:

1. TRADE NAME DISCLOSURE

1.1 The Buyer acknowledges that "**Nova Food Trailer**" is an **unregistered trade name** used by Marcelo Ramos Schiaffino as a sole individual. It does not represent a registered corporation, limited liability company, partnership, or registered trademark.

1.2 All rights, duties, obligations, representations, and liabilities under this Agreement are those of **Marcelo Ramos Schiaffino, personally**, in his capacity as Seller. The Buyer enters into this Agreement on that basis.

2. DESCRIPTION OF THE TRAILER

2.1 The Seller shall build and deliver one (1) custom food concession trailer (the "**Trailer**") with the following model and specifications:

Item	Specification
Model	Nova 8' × 14' Custom Food Concession Trailer
Base unit	8 ft wide × 14 ft long, enclosed concession trailer
Serial / VIN	To be assigned upon completion and provided to Buyer at delivery

Included equipment & build

Qty	Description
1	36" stainless steel grill
1	40 lb deep fryer
1	Double burner stove
1	29" refrigerator
1	3-compartment sink with handwash sink
1	Cabinets
1	A/C unit
1	Water tanks (fresh & wastewater)
1	Electric water heater
1	Full exterior wrap / signage

Buyer initials: _____ Seller initials: _____

3. PURCHASE PRICE

3.1 The total purchase price for the Trailer, fully built and equipped as described in Section 2, is:

TOTAL PRICE \$25,000.00	INITIAL DEPOSIT \$3,000.00	REMAINING BALANCE \$22,000.00
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3.2 All amounts are stated and payable in **United States Dollars (USD)**.

4. PAYMENT TERMS

4.1 **Initial Deposit.** The Buyer shall pay the Initial Deposit of \$3,000.00 USD upon execution of this Agreement. The Initial Deposit is required to reserve the Buyer's build slot and commence construction.

4.2 **Remaining Balance.** The Remaining Balance of \$22,000.00 USD shall be paid in installments in accordance with a payment schedule agreed in writing by the Parties during the construction period. The **full purchase price must be received and cleared by the Seller before the Trailer is released and delivered** to the Buyer.

4.3 **Application of funds.** The Seller guarantees that all amounts received from the Buyer shall be applied toward the construction, equipping, and completion of the Buyer's Trailer.

5. NON-REFUNDABLE PAYMENTS

5.1 The Trailer is a **custom-built unit** manufactured specifically for the Buyer. Because materials, equipment, labor, and fabrication are committed and ordered specifically for the Buyer, **all payments made by the Buyer — including the Initial Deposit and every installment — are NON-REFUNDABLE** in the event the Buyer cancels, abandons, postpones indefinitely, or otherwise defaults on this Agreement.

5.2 **Seller default exception (Buyer protection).** Notwithstanding Section 5.1, if the Seller fails to complete and deliver the Trailer for reasons solely and directly attributable to the Seller — and not caused by the Buyer's default, by a Force Majeure event (Section 13), or by the Buyer's failure to secure financing — the Seller shall **refund to the Buyer all amounts actually paid**, less only the documented, verifiable cost of materials and custom components already purchased and incorporated that cannot reasonably be repurposed. This clause exists to protect the Buyer's funds.

6. SELLER'S RESPONSIBILITY & COMPLETION GUARANTEE

6.1 The Seller **personally takes full responsibility for any defect, fault, or detail** in the construction, build quality, and equipment of the Trailer up to and through delivery and acceptance, and shall remedy any such defect or detail at the Seller's own cost.

6.2 The Seller guarantees completion of the Trailer to the specifications in Section 2 and its delivery to the Buyer in accordance with this Agreement.

Buyer initials: _____ Seller initials: _____

7. CONSTRUCTION & TIMELINE

7.1 Construction of the Trailer takes place in Monclova, Coahuila, Mexico.

7.2 **Delivery timeline.** The Seller shall complete and deliver the Trailer within a **minimum of three (3) weeks and a maximum of six (6) weeks** from the date the Initial Deposit is received, provided the Buyer remains current under the agreed payment schedule. The six (6) week period is a firm maximum, subject only to any Force Majeure event under Section 13.

7.3 The Seller shall provide the Buyer with reasonable progress updates during construction upon request.

8. DELIVERY & ACCEPTANCE

8.1 **Delivery location.** The Seller shall deliver the Trailer to **Dallas, Texas**, to the specific address or staging location designated by the Buyer in writing.

8.2 Delivery shall occur only after the Seller has received the full purchase price in cleared funds.

8.3 **Inspection.** Upon delivery, the Buyer shall inspect the Trailer. Any visible defect or non-conformity must be noted in writing at the time of delivery so the Seller may remedy it under Sections 6 and 10. Acceptance occurs when the Buyer takes possession without noted defects, or once noted defects are remedied.

9. RISK OF LOSS & DAMAGE COVERAGE

9.1 **Seller bears all risk.** The Seller assumes **all risk of loss, theft, or damage** to the Trailer during construction and during transit, until the Trailer is delivered to and accepted by the Buyer in Dallas, Texas. **Any damage occurring before delivery is covered and repaired by the Seller at the Seller's sole cost.**

9.2 **Transfer of risk.** Risk of loss passes to the Buyer only upon delivery and acceptance of the Trailer at the designated location.

10. LIMITED WARRANTY

10.1 The Seller provides a **one (1) year limited warranty** from the date of delivery, covering defects in materials and workmanship of the Trailer build and the installed equipment.

10.2 During the warranty period, the Seller shall, at the Seller's cost, repair or replace any component found to be defective due to manufacturing or build defects.

10.3 **Exclusions.** This warranty does not cover damage resulting from misuse, abuse, accident, neglect, improper operation, lack of maintenance, unauthorized modification or repair, or normal wear and tear occurring after delivery and acceptance.

11. TITLE & DOCUMENTATION

11.1 **Title** to the Trailer transfers to the Buyer upon (a) receipt by the Seller of the full purchase price in cleared funds, and (b) delivery of the Trailer.

11.2 The Seller shall provide the Buyer with a bill of sale and all documentation in the Seller's possession reasonably necessary for the Buyer to title and register the Trailer in the State of Texas.

12. FINANCING (SEPARATE AGREEMENT)

12.1 The Parties acknowledge that the Buyer intends to **finance all or a portion** of the purchase price. **Any financing arrangement is handled under a separate, independent financing agreement** and does not form part of this Agreement.

12.2 This Agreement is a purchase agreement only and is not a financing or credit contract. The Buyer's payment obligations under this Agreement remain in effect regardless of the status of any separate financing.

Buyer initials: _____ Seller initials: _____

13. FORCE MAJEURE

13.1 Neither Party shall be liable for any delay or failure to perform caused by events beyond its reasonable control, including acts of God, natural disasters, fire, flood, war, civil unrest, pandemic, government action, border closures, or material shortages (a "**Force Majeure**" event). The affected Party shall notify the other promptly and resume performance as soon as reasonably practicable.

14. LIMITATION OF LIABILITY

14.1 Except for the Seller's express obligations under Sections 5.2, 6, 9, and 10, each Party's total aggregate liability arising out of or related to this Agreement shall not exceed the total purchase price actually paid by the Buyer. Neither Party shall be liable for indirect, incidental, consequential, special, or lost-profit damages.

15. INDEMNIFICATION

15.1 The Buyer shall indemnify and hold the Seller harmless from any claim arising out of the Buyer's use, operation, or business activities involving the Trailer after delivery and acceptance. The Seller shall indemnify and hold the Buyer harmless from any claim arising out of defects in the Trailer existing at the time of delivery that are covered under this Agreement.

16. DEFAULT & REMEDIES

16.1 If the Buyer fails to make any payment when due or otherwise breaches this Agreement, the Seller may suspend construction and, after written notice and a ten (10) day cure period, treat the Agreement as terminated, in which case Section 5.1 (non-refundable payments) applies.

16.2 If the Seller materially breaches this Agreement, the Buyer's remedies include the Seller-default refund under Section 5.2 and any other remedy available at law.

17. INDEPENDENT RELATIONSHIP

17.1 Nothing in this Agreement creates a partnership, joint venture, agency, or employment relationship between the Parties. Each Party acts as an independent contracting party.

18. GOVERNING LAW & DISPUTE RESOLUTION

18.1 This Agreement shall be governed by and construed under the laws of the **State of Texas**, without regard to its conflict-of-laws rules.

18.2 The Parties shall first attempt to resolve any dispute in good faith. Any unresolved dispute shall be submitted to binding arbitration or to the state or county courts located in **Dallas County, Texas**, which shall have exclusive jurisdiction and venue.

19. GENERAL PROVISIONS

19.1 **Entire Agreement.** This Agreement constitutes the entire agreement between the Parties regarding the purchase of the Trailer and supersedes all prior quotes, discussions, and understandings, except that the attached/issued sales quote is incorporated for the description and pricing of the Trailer.

19.2 **Amendments.** Any amendment must be in writing and signed by both Parties.

19.3 **Severability.** If any provision is held invalid or unenforceable, the remaining provisions shall continue in full force and effect.

19.4 **Counterparts & electronic signatures.** This Agreement may be executed in counterparts and by electronic signature, each of which is deemed an original and together constitute one instrument.

20. ACCEPTANCE & SIGNATURES

By signing below, each Party acknowledges that it has read, understood, and agrees to be bound by all terms and conditions of this Agreement as of the Effective Date.

Marcelo Ramos Schiaffino

Seller — Nova Food Trailer (unregistered trade name)

Date: _____

Hani Nashar

Buyer

Date: _____